

Protection and indemnification of justices and justices' clerks

31 Immunity for acts within jurisdiction

- (1) No action lies against a justice of the peace in respect of what he does or omits to do –
 - (a) in the execution of his duty as a justice of the peace, and
 - (b) in relation to a matter within his jurisdiction.
- (2) No action lies against a justices' clerk or an assistant clerk in respect of what he does or omits to do –
 - (a) in the execution of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace, and
 - (b) in relation to a matter within his jurisdiction.

32 Immunity for certain acts beyond jurisdiction

- (1) An action lies against a justice of the peace in respect of what he does or omits to do –
 - (a) in the purported execution of his duty as a justice of the peace, but
 - (b) in relation to a matter not within his jurisdiction,if, but only if, it is proved that he acted in bad faith.
- (2) An action lies against a justices' clerk or an assistant clerk in respect of what he does or omits to do –
 - (a) in the purported execution of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace, but
 - (b) in relation to a matter not within his jurisdiction,if, but only if, it is proved that he acted in bad faith.

33 Striking out proceedings where action prohibited

- (1) If an action is brought in circumstances in which section 31 or 32 provides that no action lies, a judge of the court in which the action is brought may, on the application of the defendant, strike out the proceedings in the action.
- (2) If a judge strikes out proceedings under subsection (1), he may if he thinks fit order the person bringing the action to pay costs.

34 Costs in legal proceedings

- (1) A court may not order a justice of the peace to pay costs in any proceedings in respect of what he does or omits to do in the execution (or purported execution) of his duty as a justice of the peace.
- (2) A court may not order –
 - (a) a justices' clerk, or
 - (b) an assistant clerk,to pay costs in any proceedings in respect of what he does or omits to do in the execution (or purported execution) of his duty as a justices' clerk or assistant clerk exercising, by virtue of an enactment, a function of a single justice of the peace.